Constitutional Amendment Jurisprudence

From Shankari Prasad to Kesavananda Bharati

Lecture Notes

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1 Constitutional Framework

1.1 Schedules of the Indian Constitution

Schedule	Added By	Constitutional Amendment
1st–8th	Original Constitution	—
9th Schedule	First Amendment Act, 1951	Article 31B
10th Schedule	52nd Amendment	Anti-defection Law
11th Schedule	73rd Amendment	Panchayati Raj
12th Schedule	74th Amendment	Municipalities

Key Point

The 9th Schedule was **not** part of the original Constitution. At the time of enactment, only 8 Schedules existed.

1.2 Purpose and Mechanism of the 9th Schedule

The 9th Schedule operates through the following mechanism:

(i) Parliament places specific Acts in the 9th Schedule

(ii) Such Acts become **immune from judicial review** for violation of Fundamental Rights

(iii) **Article 13(2)** ceases to apply to these Acts

(iv) Even if they violate Articles 14, 19, and 31, they remain constitutionally valid

Quote

"The Constituent Assembly made an umbrella where rainwater would not go. Call that umbrella the 9th Schedule. Now, if you put any act in the 9th Schedule, then Article 13(2) will not apply to it."

Caution

Important Distinction: The 9th Schedule itself is NOT immune from judicial review. Rather, the *Acts placed within* the 9th Schedule by Parliament become immune from challenge on the ground of violating Fundamental Rights.

1.3 Article 368: Constitutional Amendment Procedure

Article 368(1)

"Notwithstanding anything in this Constitution, Parliament may in exercise of its ***constituent power*** *amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article."*

Article 368(2) – Key Phrase

*"...it may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed **in each House** by a majority..."*

Key Point

The Constitution requires passage by **both** Houses of Parliament. The constitutional names (under Article 79) are:

- **Council of States** (Rajya Sabha)
- **House of the People** (Lok Sabha)

1.4 The Provisional Parliament Problem

Factual Context (1951):

- The Constituent Assembly was functioning as the **provisional Parliament** of India
- Elections for Lok Sabha were held only in 1951–52
- Rajya Sabha could be constituted **only after** Lok Sabha and State Legislative Assemblies were constituted
- Therefore, Rajya Sabha **did not exist** when the First Amendment was passed

Legal Basis for Single-House Amendment:

(a) **Article 379** (now repealed): Gave the provisional Parliament all powers of the regular Parliament

(b) The President was empowered to make rules to remove difficulties in implementing the Constitution

Quote

"If Rajya Sabha was not there, should the country have been locked up? That the country will not move forward, it will stand right there, and when Rajya Sabha comes, it will be seen? Or should there be some mechanism for improvement?"

2 Dr. B.R. Ambedkar's Vision of Contradictions

Dr. Ambedkar, in his final speech to the Constituent Assembly, identified three fundamental contradictions in Indian society:

1. **Political Equality:** "One man, one vote, one vote, one value" – All citizens are politically equal
2. **Social Inequality:** Hierarchies based on caste and class persist

3. **Economic Inequality:** Disparities in wealth and land ownership

> **Quote**
>
> *"On the political front we all are equal now... but on social and economic fronts, we are not."*

Purpose of the First Amendment: To remove economic contradictions by enabling land reform legislation. The 9th Schedule was designed to protect these reforms from judicial challenge.

Constitutional Goal: An **egalitarian society** – ensuring justice, social, economic, and political.

3 Shankari Prasad Singh Deo v. Union of India

3.1 Case Details

Particular	Detail
Bench Strength	5 Judges
Decision	Unanimous (5 : 0)
Judgment Author	Justice M. Patanjali Sastri
Petitioners' Counsel	P.R. Das
Respondents' Counsel	M.C. Setalvad

> **Key Point**
>
> M.C. Setalvad was the **first Attorney General of India** – this is a potential General Knowledge question.

3.2 Factual Background

1. Zamindars (landlords) challenged land reform laws in Bihar, Uttar Pradesh, and Madhya Pradesh

2. Ground for challenge: These laws violated their **Fundamental Rights** under Part III of the Constitution

3. To protect these land reform laws from judicial scrutiny, Parliament passed the **First Constitutional Amendment Act, 1951**

4. This Amendment inserted:

   - **Article 31A**
   - **Article 31B**
   - **The 9th Schedule**

5. Having lost the ability to challenge the Acts directly (due to 9th Schedule protection), the zamindars challenged the **First Amendment itself**

Key Point

Strategic Logic: "If the tree falls, the branch will fall anyway." If the First Constitutional Amendment is struck down, the 9th Schedule and all Acts placed within it would automatically fall.

3.3 Petitioners' Arguments

Argument 1: Only a Proper Two-House Parliament Can Amend
Article 368 requires passage by *each House*. The temporary one-house provisional Parliament lacked the competence to amend the Constitution.

Argument 2: The President Wrongly Modified Article 368
The President allegedly changed the wording of Article 368 to permit amendment by a single House.

Caution

Commentary: This argument was considered weak. Over-pleading weakens a case. When even one ground is found to be false, the judge may view the entire petition with suspicion.

Argument 3: Constitutional Amendment is "Law" under Article 13

- Article 12 defines "State" to include Parliament
- Therefore, whatever Parliament makes is "law"
- Article 13(2) states that no law shall violate Fundamental Rights
- A Constitutional Amendment, being a "law," must also comply with Part III
- If it violates Fundamental Rights, it must be declared void

Argument 4: State Ratification Was Necessary
Article 368 requires that certain provisions, when amended, must receive ratification by **half of the State Legislatures**. Articles 31A and 31B affected the power of courts, which arguably required such ratification.

Argument 5: Amendment Procedure Was Not Followed
The Amendment Bill was changed after its introduction in Parliament.

Caution

Commentary: This argument was dismissed as untenable. Parliament is master of its own procedure and can amend, reject, or modify any Bill. Parliament is "slave only to the Constitution," not to lawyers or procedural technicalities of this nature.

Argument 6: Parliament Cannot Legislate on Land
Land is a **State subject** under the Seventh Schedule. Parliament lacks legislative competence over land matters.

Caution

Commentary: This argument conflated legislative power with constituent power. Parliament did not make a law on land; it *amended the Constitution* to create the 9th Schedule. These are distinct powers.

3.4 Respondents' Arguments (Union of India)

Response 1: Parliament Has the Power to Amend the Constitution, Including Fundamental Rights

Two textual reasons support this:

- **Article 13(3):** When defining "law," the Constitution makers enumerated: ordinances, laws, by-laws, regulations, rules, orders, customs, usages. They **did not include** "constitutional amendment" in this definition. If their intention was to prevent amendment of Fundamental Rights, they would have explicitly mentioned it.
- **Article 368:** When granting the power to amend "any provision of this Constitution," the framers could have written "except Part III." They did not. Despite knowing that Fundamental Rights are sacrosanct, they deliberately omitted any such restriction.

Key Point

Textual Inference: The deliberate omission in both Article 13(3) and Article 368 indicates that the Constituent Assembly did not intend to bind Parliament's amending power with respect to Fundamental Rights.

Response 2: Constitutional Amendment is NOT "Law" under Article 13

Parliament possesses **two distinct powers**:

Ordinary Legislative Power	**Constituent Power**
Derived from Article 245–246	Derived from Article 368
Subject to Article 13(2)	**Not subject to Article 13(2)**
Limited by Seventh Schedule	As powerful as the Constituent Assembly itself
Makes ordinary laws	Makes/amends the Constitution

Quote

"When an amendment is happening under constituent power, Parliament becomes very powerful. It becomes as powerful as the Constituent Assembly itself was. Just as there were no restrictions on the Constituent Assembly, similarly no restrictions will remain with the Parliament either, because restrictions are not written anywhere."

Response 3: Provisional Parliament Had Full Powers
Article 379 (now repealed) conferred all parliamentary powers on the provisional Parliament until the regular Parliament was constituted.

Response 4: State Ratification Was Not Required
Articles 31A and 31B did not **directly** reduce the powers of courts. Only provisions that *directly* affect court powers trigger the ratification requirement. Indirect effects do not suffice.

Response 5: Parliament Could Protect Land Reform Laws
Articles 31A and 31B were themselves constitutional amendments. Parliament possessed the constituent power to enact them.

3.5 The Judgment

Case Summary

Held: The First Constitutional Amendment is **constitutionally valid**.

Ratio Decidendi – Core Reasoning:

(1) **Constituent Power vs. Legislative Power**
Article 368 confers **constituent power**, which is distinct from the ordinary legislative power exercised under Articles 245–246. Article 13(2) applies **only** to ordinary legislative power, not to constituent power.

(2) **Textual Interpretation of Article 13(3)**
The definition of "law" in Article 13(3) does not expressly include "constitutional amendment." This omission is deliberate and significant.

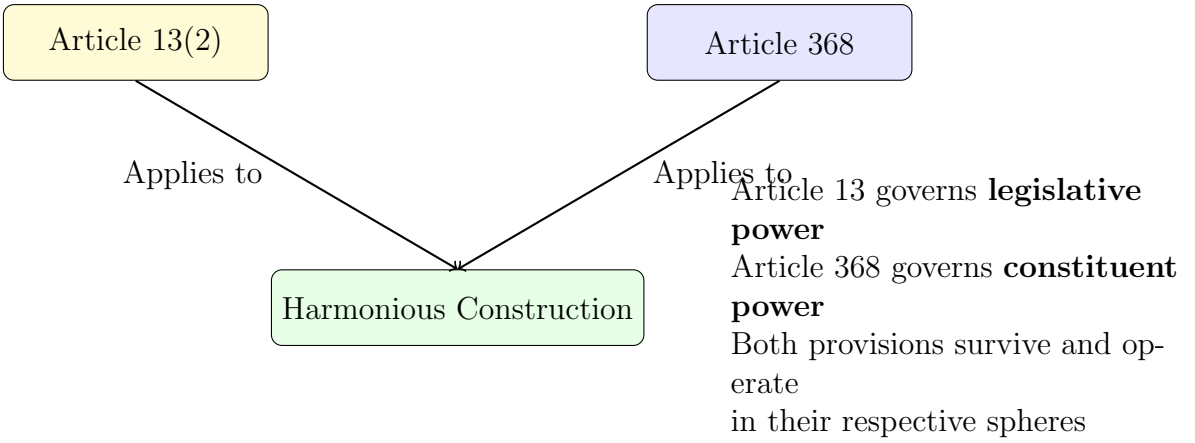
(3) **Textual Interpretation of Article 368**
Article 368 does not contain any exception for Part III (Fundamental Rights). The framers could have written "except Part III" but chose not to. This indicates that Parliament's amending power extends to Fundamental Rights.

3.6 Doctrine of Harmonious Construction

Key Point

Definition: Harmonious construction is a principle of statutory interpretation where two apparently conflicting provisions are interpreted in a manner that gives effect to **both**, rather than allowing one to render the other inoperative.

Application in Shankari Prasad:



Reasoning:

- If Article 13 were interpreted broadly to include constitutional amendments, Article 368 would become **non-operational** – it could not amend any Fundamental Right
- Such an interpretation would render Article 368 "dead" for the purposes of Part III
- Courts should avoid interpretations that make one provision completely ineffective
- The harmonious construction: Article 13 applies to ordinary legislation; Article 368 applies to constitutional amendments
- Both articles survive and function within their respective domains

Quote

"Harmony means making a balance between both, keeping both alive. Lest one dies. Both survive."

4 The Trajectory of Amendment Jurisprudence

4.1 Overview of the Evolution

Case	Year	Held	Key Doctrine
Shankari Prasad	1951	Amendment power unlimited	Constituent vs. Legislative power
Sajjan Singh	1965	Doubts expressed	Basic Structure (first mention)
Golak Nath	1967	No amendment of FRs	Prospective Overruling
24th Amendment	1971	Overruled Golak Nath	Parliamentary supremacy
Kesavananda Bharati	1973	Middle path	Basic Structure Doctrine

4.2 Sajjan Singh v. State of Rajasthan (1965)

Case Summary

Key Judges from Nagpur:

- **Justice M. Hidayatullah**
- **Justice J.R. Mudholkar**

Both expressed doubts about the unlimited amending power recognised in Shankari Prasad.

Significance:

(1) The majority followed Shankari Prasad

(2) However, two judges expressed **doubts** about Parliament's unlimited amending power

(3) **Justice Mudholkar** used the term **"basic structure"** for the first time in Indian constitutional jurisprudence

(4) Both judges agreed that Parliament's power cannot be unlimited, but they expressed this concern in **different ways**

Caution

Task: Identify the precise difference between Justice Hidayatullah's and Justice Mudholkar's reasoning. Both concluded that amending power is not unlimited, but their approaches differed.

4.3 Golak Nath v. State of Punjab (1967)

Case Summary

Bench: 11 Judges
Outcome: Overruled Shankari Prasad and Sajjan Singh
Held: Parliament **cannot** amend Fundamental Rights

Key Reasoning:

(1) **Article 368 provides only the procedure, not the power**
The actual power to amend the Constitution is derived from the **residuary legislative power** under Entry 97, List I, Seventh Schedule, read with Article 248

(2) Since the amending power is legislative in nature, a constitutional amendment is "law" within the meaning of Article 13(2)

(3) Therefore, any constitutional amendment violating Fundamental Rights is void

(4) There is **no distinction** between constituent power and legislative power

Key Point

Doctrine of Prospective Overruling (Introduced for the First Time)

- The Court held that its decision would apply **only prospectively** (from the date of judgment onwards)
- All amendments made *before* the judgment remained valid
- This meant Golak Nath **won the case but got no relief** – the property already taken remained taken

Quote

"That poor guy won the case, but he didn't get any relief."

4.4 The 24th Constitutional Amendment (1971)

Purpose: To overturn the Golak Nath decision.

Key Changes:

(a) Amended Article 368 to clarify that it confers **both power and procedure** for amendment

(b) Added **Article 368(3)**: "Nothing in Article 13 shall apply to any amendment made under this article"

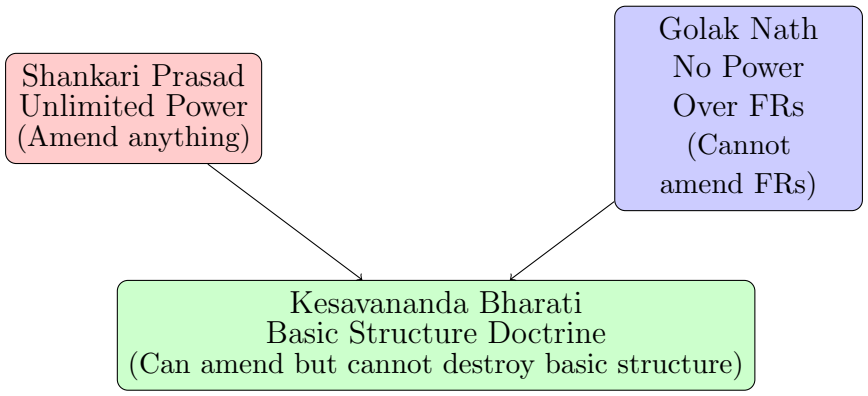
(c) Made Presidential assent to amendment Bills **mandatory**

4.5 Kesavananda Bharati v. State of Kerala (1973)

Case Summary

Bench: 13 Judges (largest constitutional bench in Indian history)
Challenge: Validity of the 24th Amendment
Outcome: The **Basic Structure Doctrine**

The Middle Path:



Core Holding:

(1) Parliament **can amend** any part of the Constitution, **including Fundamental Rights**

(2) However, Parliament **cannot destroy or abrogate** the "basic structure" or "essential features" of the Constitution

(3) The 24th Amendment was upheld, but Golak Nath's core concern (protection against absolute power) was preserved through the basic structure limitation

Key Point

Key Judges to Study:

- **Chief Justice S.M. Sikri** – Majority view
- **Justice K.K. Mathew** – Distinct reasoning differing from Sikri

5 Comparative Analysis

Issue	**Shankari Prasad**	**Golak Nath**	**Kesavananda Bharati**
Nature of amending power	Constituent power (distinct)	Legislative power (same)	Constituent power (distinct but limited)
Amendment of FRs	Permitted	Not permitted	Permitted, subject to basic structure
Art. 13 applies to amendments?	No	Yes	No (overruled Golak Nath on this point)
Art. 368 provides	Power + Procedure	Procedure only	Power + Procedure
Ultimate limit	None (unlimited)	Absolute (cannot amend FRs)	Basic Structure

6 Key Definitions and Concepts

Egalitarian Society: A society based on the principle of equality for all its members; the constitutional goal of achieving social, economic, and political justice.

Harmonious Construction: An interpretative principle where two conflicting provisions are interpreted in a manner that gives effect to both, ensuring neither becomes inoperative.

Prospective Overruling: A doctrine where the Court declares the law as it should be from the date of judgment onwards, but does not disturb past transactions decided under the overruled law.

Basic Structure: The essential and fundamental features of the Constitution that cannot be destroyed or abrogated by any constitutional amendment. First mentioned by Justice Mudholkar in Sajjan Singh and fully developed in Kesavananda Bharati.

Constituent Power: The power to frame, make, or amend the Constitution, derived from Article 368. Distinguished from ordinary legislative power.

Ordinary Legislative Power: The power to make laws on subjects enumerated in the Seventh Schedule, derived from Articles 245–246, and subject to the restrictions in Article 13(2).

7 Study Tasks

Caution

Assigned Reading (3 days):

1. Shankari Prasad – Full judgment, focus on harmonious construction reasoning
2. Sajjan Singh – Focus on Hidayatullah and Mudholkar judgments only; identify the difference in their reasoning
3. Golak Nath – Focus on Subba Rao CJ's majority reasoning
4. Kesavananda Bharati – Focus on Sikri CJ and Mathew J; understand the difference between their approaches

Key Point

Memorisation Task: Memorise 4–6 significant sentences from each leading judgment, particularly:

- Descriptions of Fundamental Rights as "sacrosanct"
- Articulations of the limits of parliamentary power
- Definitions of the basic structure

Caution

Presentation Assignments:

- **Prospective Overruling:** Prepare a lecture on the doctrine and identify all Supreme Court cases where it has been applied
- **Right to Privacy:** Prepare a presentation on the Right to Privacy judgment (K.S. Puttaswamy v. Union of India) – 9-judge bench

8 Timeline

Year	Event
1950	Constitution comes into force (8 Schedules)
1951	First Constitutional Amendment (adds 9th Schedule)
1951	Shankari Prasad – Amendment upheld
1965	Sajjan Singh – Doubts expressed
1967	Golak Nath – Amendment of FRs prohibited
1971	24th Amendment – Overturns Golak Nath
1973	Kesavananda Bharati – Basic Structure Doctrine established